

THE FOURTH SCHEDULE.

Section 14.

INCUMBENTS RESIGNATION ACT, 1871, AMENDMENT ACT, 1887.

SECTION 5.

.

The annual value of a benefice for the purposes of this Act shall be the net annual value exclusive of the parsonage, vicarage, or other place of residence of the incumbent, after deducting all rates, taxes and charges assessed upon and payable out of the benefice, which charges shall include the salary of any curate who is compulsorily employed, and any annual payments in respect of any terminable mortgage having at the time of the sitting of the said Commission more than two years to run.

No. 7.

A MEASURE passed by the National Assembly
of the Church of England.

To amend the law relating to the holding of benefices in plurality, and for that purpose to extend the powers exerciseable under the Union of Benefices Measure, 1923.

[1st August 1930.]

1. Section four of the Pluralities Act, 1838 (so far as unrepealed) and section fourteen of the Pluralities Acts Amendment Act, 1885, shall respectively cease to have effect, and, for the purposes of the Pluralities Act, 1838, the conditions as to distance and annual value which must be satisfied in order that two benefices may be held in plurality pursuant to such licence or dispensation

Conditions applicable to the holding of benefices in plurality.
1 & 2 Vict. c. 106.
48 & 49 Vict. c. 54.

as is in the Pluralities Act, 1838, mentioned shall be the following conditions (namely):—

13 & 14 Vict.
c. 98.

Extension
of Union of
Benefices
Measure
so as to
authorise
in certain
cases the
holding of
benefices in
plurality
uncon-
ditionally.

- (i) that the distance between the two benefices computed in manner laid down by the Pluralities Act, 1838, does not exceed four miles; and
- (ii) that the annual value of one of the benefices computed in manner laid down by the Pluralities Act, 1850, does not exceed four hundred pounds.

2.—(1) The powers exerciseable under the Union of Benefices Measure, 1923, shall be extended so as to include power to recommend that any two or more benefices may be held in plurality.

(2) The bishop on receiving a report from commissioners under the Union of Benefices Measure, 1923, recommending that any benefices may be held in plurality may, if the Ecclesiastical Commissioners, the bishop of any other diocese that may be affected and the patron or patrons concerned shall respectively approve of the report, transmit a copy thereof to the Archbishop of Canterbury, who shall have power after consideration of the report to grant upon the application of the clerk in Holy Orders concerned under the seal of his office of faculties a licence or dispensation giving effect so far as he shall think fit to the recommendations of the report as to the holding of benefices in plurality.

(3) The conditions laid down by the Pluralities Act, 1838, that not more than two benefices may be held in plurality and that not more than two benefices shall be served by the same person in one day and the conditions laid down in the first section of this Measure shall respectively not apply in any case where a licence or dispensation is granted pursuant to this section, but, subject as aforesaid, the existing provisions of the Pluralities Act, 1838, relating to licences or dispensations shall so far as applicable extend to any such licence or dispensation.

(4) The provisions of the Union of Benefices Measure, 1923, relating to schemes giving effect to reports under that Measure shall not apply to so much of any report as recommends that any benefices may be held in plurality.

Short title.

3. This Measure may be cited as the Pluralities Measure, 1930.